

17 February 2020

former Honey Monster factory site, Southall**in the London Borough of Ealing
planning application no.91022FUL****Strategic planning application stage II referral**

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007;
Town & Country Planning (Mayor of London) Order 2008

The proposal

Part residential mixed use, part employment redevelopment to provide a creative industries hub (including film studio), approximately 1,997 new homes and a range of affiliated commercial, community and leisure uses in buildings of up to 29-storeys.

The applicant

The applicant is **Bridge Road Southall 2 Ltd.**, and the architects are **EPR, AHR, PRS** and **LBA**

Key dates

Pre-application meetings: 25 July 2018, 25 September 2018 and 4 December 2018

Stage 1 response: 17 June 2019

Ealing planning committee: 18 September 2019

Strategic issues

Principle of development: The proposed part employment, part residential redevelopment of this vacant brownfield Opportunity Area site is strongly supported in principle. The applicant has demonstrated that the industrial type floorspace at the site has been maximised.

Affordable housing: The 35% provision of affordable housing (33% London Affordable Rent, 52% shared ownership and 15% Discounted Market Rent) has been verified as the maximum level.

Urban design: The design responds well to the local context and proposes a high-quality redevelopment. The Council have appropriately secured key details of facing materials, rooflines and any glazing to ensure a high-quality scheme is delivered.

Sustainable development: The energy strategy is supported.

Transport: All transport requirements have been addressed or secured by condition or section 106 agreement and are supported.

The Council's decision

In this instance Ealing Council has resolved to grant permission, subject to planning conditions and a section 106 agreement.

Recommendation

That Ealing Council be advised that the Mayor is content for it to determine the case itself, subject to any action that the Secretary of State may take, and does not therefore wish to direct refusal or direct that he is to be the local planning authority.

Context

1 On 10 April 2019 the Mayor of London received documents from Ealing Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. This was referred to the Mayor under the following Categories of the Schedule to the Order 2008:

- 1A.1 *“Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.”*
- 1B.1(c) *“Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings outside Central London and with a total floorspace of more than 15,000 square metres.”*
- 1C.1(c) *“Development which comprises or includes the erection of a building more than 30 metres high and is outside the City of London.”*

2 On 17 June 2019 the Mayor considered planning report GLA/4700/01, and subsequently advised Ealing Council that whilst the scheme was generally supported in strategic planning terms, the application did not fully comply with the London Plan, for the reasons set out in paragraph 67 of that report.

3 A copy of the above-mentioned report is attached. The essentials of the case with regard to the proposal, the site, case history, strategic planning issues and relevant policies and guidance are as set out therein, unless otherwise stated in this report. Since then, the application has been revised in response to the Mayor’s concerns (see below). On 18 September 2019 Ealing Council decided that it was minded to grant planning permission and on 4 February 2020 it advised the Mayor of this decision. Under the provisions of Article 5 of the Town & Country Planning (Mayor of London) Order 2008 the Mayor may allow the draft decision to proceed unchanged, direct Ealing Council under Article 6 to refuse the application or issue a direction to Ealing Council under Article 7 that he is to act as the Local Planning Authority for the purposes of determining the application and any connected application. The Mayor has until 10 February 2020 to notify the Council of his decision and to issue any direction.

4 The environmental information for the purposes of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 has been taken into account in the consideration of this case.

5 The decision on this case, and the reasons, will be made available on the City Hall website www.london.gov.uk.

Consultation stage issues summary

6 At consultation stage, Ealing Council was advised that whilst the scheme was generally supported in strategic planning terms, the application did not fully comply with the London Plan, for the reasons set out in paragraph 67 of that report.

- **Principle of development:** The proposed part employment, part residential redevelopment is strongly supported in principle. However, the proposal would result in a 6% loss of industrial floorspace capacity. Accordingly, the applicant is strongly encouraged to increase the provision of industrial-type floorspace.

- **Affordable housing:** Whilst the 35% affordable housing offer is supported in principle, the Financial Viability Assessment is undergoing robust assessment to ensure that the maximum contribution is secured in accordance with the London Plan, Mayor's Affordable Housing and Viability SPG, and draft London Plan.
- **Urban design:** The design responds well to the local context and proposes a high-quality redevelopment. The Council must secure key details of facing materials, rooflines and any glazing to ensure a high-quality building is delivered.
- **Inclusive access:** The schemes provides appropriate levels of accessible accommodation. This is supported and should be secured by condition, along with Building Regulations standards M4(2) and M4(3) in line with London Plan Policy 7.2 and draft London Plan Policy D3.
- **Sustainable development:** Further revisions and information is required before the proposals can be considered acceptable and the carbon dioxide savings verified.
- **Transport:** Given the existing access constraints it is essential that suitable active travel and public transport is provided to unlock the full development potential of this site. The applicant is required to address transport issues with respect to; active travel, healthy streets and highway impact, public transport impacts and provision, vehicle parking and trip generation. Transport matters which must be secured by planning condition include: cycle parking provision and design, a detailed linked travel plan and a Delivery & Servicing Plan (DSP) for residential and commercial uses and a construction and servicing plan.

Strategic planning policy and guidance update

7 Since consultation stage, Government published a revised version of the NPPF in February 2019.

8 The London Plan (intend to Publish version, December 2019) is now a material consideration, and should be taken into account on the basis explained in paragraph 48 of the NPPF.

Application update

9 Since consultation stage, GLA officers have engaged in joint discussions with the applicant, the Council, and TfL officers, with a view to addressing the above matters. Furthermore, as part of Ealing Council's draft decision on the case, various planning conditions and obligations have been secured to address the above concerns and ensure that the development is acceptable in planning terms. An update of issues raised at consultation stage is set out below.

Principle of development

10 At consultation stage, the proposal to provide part residential mixed use, part employment redevelopment including a creative industries hub (including film studio), approximately 1,997 new homes and a range of affiliated commercial, community and leisure uses in buildings of up to 29-storeys was strongly supported in principle. However, on the basis that the proposal would fall short of like for like reprovion of industrial capacity, the applicant was strongly encouraged to increase the provision of industrial-type floorspace within the proposals. However, following further joint

engagement with the applicant team and the Council on this issue, GLA officers now accept that it is not possible to increase the overall provision of industrial floorspace within the scheme without compromising the flexibility/specification of that space, or, adversely impacting on the core design principles of the site-wide masterplan. Accordingly, notwithstanding a 6% shortfall against the reprovion benchmark, GLA officers are satisfied that industrial capacity has been maximised in line with London Plan Policy 4.4 and Policies E4 and E7 of the Intend to Publish London Plan.

Affordable housing

11 At consultation stage the applicant was advised that whilst the 35% affordable housing offer (33% London Affordable Rent, 52% shared ownership and 15% Discounted Market Rent) was supported in principle, it did not meet the relevant threshold for 'Fast Track' compliance given the under-provision of industrial type floorspace. As such the scheme followed the viability tested route with GLA officers rigorously scrutinising the applicant's financial viability assessment provided by Gerald Eve and Ealing Council's independent review undertaken by DVS. Accordingly it has been verified that the provision of 589 affordable units (equivalent to 35% by habitable room) is the maximum level that the scheme can afford, and is significantly above the established current day viable position (of between 0-5% affordable housing). Whilst not 'Fast Track' route compliant (given the 6% shortfall in industrial reprovion), the provision of 35% affordable housing responds positively to the objectives of the Mayor's intend to publish London Plan and the Affordable Housing and Viability SPG, and is strongly supported. Moreover, given the 30-35% front loaded growth offer secured, and the comparatively minor shortfall against the industrial reprovion benchmark in this case, the absence of a late stage review is accepted in this case. The Council has, nevertheless, secured the affordability levels and early stage viability review within the Section 106 agreement.

Urban design

12 At consultation stage it was reported that the design responded well to the local context and delivered a high-quality redevelopment. The Council was advised to secure key details of facing materials, rooflines and any glazing to ensure a high-quality building is delivered. As part of the Council's draft decision notice it has secured the submission of details/sample materials for approval in addition to ensuring the development is carried out fully in accordance with the Fire Safety Design (Planning Stage) prepared by Fire & Risk Solutions Ltd. Accordingly, the application is acceptable in strategic design terms.

Sustainable development

13 At consultation stage the applicant and Council were advised that further revisions and information is required on the energy strategy before the proposals could be considered acceptable and the carbon dioxide savings verified. Since then the applicant has engaged with GLA officers to resolve these issued through the submission of additional justification and technical details. In addition to this the borough has secured compliance with the approved energy strategy. The application does not raise any strategic concerns with respect to sustainable development.

Transport

14 At consultation stage the applicant and Council were advised that suitable active travel and public transport would need to be achieved at the site in addition to the resolution of issues regarding active travel, healthy streets and highway impact, public transport impacts and provision, vehicle parking and trip generation. Transport matters which it was advised must be secured by planning condition include: cycle parking provision and design, a detailed linked travel plan and a Delivery & Servicing Plan (DSP) for residential and commercial uses and a construction and servicing plan. In the interim between the Mayor's consultation response and decision-making stage the applicant has worked collaboratively with Ealing and GLA officers to provide the additional information required through the submission of further technical notes. The Council have secured by way of condition an appropriate quantum of cycle stores, the submission of all necessary strategies and plans and secured by way of obligation contributions to all necessary highway and public transport improvements (detailed below at paragraph 19).

Response to consultation

15 In addition to inviting comments from statutory consultees and publishing all the relevant documents on the Council's planning register, Ealing Council carried out a public consultation in March 2019 with local residents, businesses and institutions, including individual letters to neighbouring properties. A second round of consultation was carried out in May with a third in June. A total of 128 representations were received, a summary of grounds for objection is as follows:

- Height and massing
- Amenity impacts and noise/nuisance
- Construction impacts including; noise/ecology
- Air quality including dust
- Ecological and biodiversity impacts
- Threat of harming on-site Peregrine Falcons

16 The following amenity groups issued responses to the consultations:

- **Canal and River Trust:** No comment.
- **Maypole Docks Residents Association:** Raised concerns in respect to; consultation, overdevelopment, height and massing, pressure on existing infrastructure, biodiversity impacts, overlooking, privacy, construction/demolition impacts and impacts to residents in Maypole Dock and the effect of these on local ecology and biodiversity.
- **Ealing Civic Society:** Raised concerns in respect to; overdevelopment, height and massing, density, overbearing, design (particularly in relation to the creative hub),
- **The Residential Boat Owner's Association (RBOA):** concerns raised regarding the consultation process and how association members were being viewed as part of the consultation.
- **Inland Waterways Association (IWA):** raised concerns regarding; heritage impacts, height, over development, harm to views and planning policy conflicts.

17 The following organisations also issued responses to the consultations:

- **Historic England:** Advised that any harm to the significance of the heritage asset (Osterley Park, a Grade II* registered park) through development within its setting is clearly and convincingly justified and outweighed by the delivery of public benefits.
- **Kew Gardens:** Confirmed the development will not be visible within the Kew to Syon view/vista. As such no further safeguards were recommended.
- **The Greater London Archaeological Advisory Service (GLAAS):** Specified that the site does not lie within an archaeological priority area
- **Natural England:** No objection
- **Environmental Agency (EA):** no objection
- **Ealing Clinical Commissioning Group (NHS):** Request that a financial contribution of £3,469,397 is secured in the legal agreement, based on the Healthy Urban Development Unit (HUDU) model.
- **Cadent (Gas):** Suggested that an informative is attached, notifying the developers that they are required to contact Cadent's Plant Protection Team for consultation, before carrying out any works on site.
- **Heathrow Airport Ltd:** No safeguarding objections, provided that conditions to secure the protection of radars and a bird hazard management plan submission were secured.
- **Sports England:** Raised an objection in relation to increased population and resulting pressure on local facilities, the payment negotiated is welcomed but considered insufficient.
- **The Secretary of State (Planning Casework Unit (PCU):** No comment.
- **Crime Prevention Design Officer (Metropolitan Police):** Recommended that a planning condition is attached to secures compliance with Secured by Design principles.
- **Highways England (HE):** Raised concerns with potential impacts on the strategic road network.
- **Network Rail:** No objection in principle requested conditions/informatives to protect Network Rail land and infrastructure.
- **Fire Safety Regulation Service:** Advised that the Commissioner is satisfied with the proposals.
- **Thames Water:** Suggested that planning conditions to ensure that the water network infrastructure has been investigated and there is evidence that the water network on the site can provide for the proposed capacity uplift.
- **National Air Traffic Services (NATS):** No objection to the application subject to the imposition of the conditions to protect Heathrow airports operation.
- **London Borough of Hounslow:** No comment.

18 The Mayor has received 3 direct representations of objection which, in summary, collectively raise the following issues:

- Demolition impacts to natural environment
- Consultation engagement
- Amenity impacts, including impacts of dust and noise
- Demolition impacts to surrounding residents
- Site and border security
- Privacy
- Inaccuracies in planning documents
- Impacts to residents of Maypole Dock

19 Issues raised as part of the local consultation process have been considered in this report, the Mayor's Stage I report, and the Council's Planning Committee Report. The Council has proposed various planning obligations and conditions in response. Having had regard to these, GLA officers are satisfied that the statutory and non-statutory responses to the public consultation process do not raise any material planning issues of strategic importance that have not already been considered in this report, or consultation stage report GLA/4700/01.

Draft section 106 agreement

20 Further to the heads of terms set out within Ealing Council's Planning Committee Report, the draft section 106 agreement secures the following key provisions:

- Bridge Road - Prior to Commencement of the Development the Council shall obtain the necessary TRO(s) and such other consents as are necessary to secure the carrying out of the Bridge Road Improvement Works. In the absence of the 'do maximum' bridge road improvement works being completed or the connection between Healum Avenue to Merrick road the Creative may not be occupied until a shuttle service has been implemented.
- Eastern Link – land is safeguarded for the delivery of this link
- South Road Bridge widening contribution – £500,000
- Healum Avenue safeguarded land - land is safeguarded for the delivery of this link
- Affordable housing – 35% by habitable room (33% London Affordable Rent, 52% shared ownership and 15% Discounted Market Rent) secured in perpetuity.
- Early stage review – secured post substantial implementation
- Highways – improvements to Glade Lane Footway Improvements/Merrick Road Footway/Cycle Bridge Works – a total of £3.85 million to be paid completion of phases 1, 2 and 3 for all highway contributions.
- Bus service improvement contribution – A total contribution by the completion of stages 1, 2 and 3 of £1.5 million.
- Carbon off-setting – to be paid if required following the approval of details by the LPA.
- Sports facilities contribution – a total across the completion of phases 1, 2 and 3 of £1 million to be paid to the Council.
- Affordable employment space - Not to Occupy or permit Occupation of any part of Phase 2 unless and until the Affordable Employment Space Strategy has been submitted to the Council.
- Education – A total contribution by the completion of stages 1, 2 and 3 of £3.25 million.
- Healthcare Contribution – a total of £3 million to be paid

Article 7: Direction that the Mayor is to be the local planning authority

21 Under Article 7 of the Order the Mayor could take over this application provided the policy tests set out in that Article are met. In this instance the Council has resolved to grant permission with conditions and a planning obligation, which satisfactorily

addresses the matters raised at stage I, therefore there is no sound planning reason for the Mayor to take over this application.

Legal considerations

22 Under the arrangements set out in Article 5 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor has the power under Article 6 to direct the local planning authority to refuse permission for a planning application referred to him under Article 4 of the Order. He also has the power to issue a direction under Article 7 that he is to act as the local planning authority for the purpose of determining the application and any connected application. The Mayor may also leave the decision to the local authority. In directing refusal the Mayor must have regard to the matters set out in Article 6(2) of the Order, including the principal purposes of the Greater London Authority, the effect on health and sustainable development, national policies and international obligations, regional planning guidance, and the use of the River Thames. The Mayor may direct refusal if he considers that to grant permission would be contrary to good strategic planning in Greater London. If he decides to direct refusal, the Mayor must set out his reasons, and the local planning authority must issue these with the refusal notice. If the Mayor decides to direct that he is to be the local planning authority, he must have regard to the matters set out in Article 7(3) and set out his reasons in the direction.

Financial considerations

23 Should the Mayor direct refusal, he would be the principal party at any subsequent appeal hearing or public inquiry. Government Planning Practice Guidance emphasises that parties usually pay their own expenses arising from an appeal.

24 Following an inquiry caused by a direction to refuse, costs may be awarded against the Mayor if he has either directed refusal unreasonably; handled a referral from a planning authority unreasonably; or behaved unreasonably during the appeal. A major factor in deciding whether the Mayor has acted unreasonably will be the extent to which he has taken account of established planning policy.

25 Should the Mayor take over the application he would be responsible for holding a representation hearing and negotiating any planning obligation. He would also be responsible for determining any reserved matters applications (unless he directs the council to do so) and determining any approval of details (unless the council agrees to do so).

Conclusion

26 The strategic issues raised at consultation stage with respect to the principle of development, affordable housing, urban design, sustainable development and transport have been addressed. Having regard to the details of the application, the matters set out in the Planning Committee Report and draft decision notice; the application complies with the London Plan and the Mayor's intend to publish London Plan, and there are no sound planning reasons for the Mayor to intervene in this case.

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